

LAW & MOTION CALENDAR
TENTATIVE RULINGS

June 05, 2026

9:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1	Torres vs. The Soundcoat Company, Inc. 2024-01434818	Plaintiff's Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to August 7, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before July 27, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 1. Section 3.1.3 of the agreement first says administrative costs will not exceed \$4,000, then says costs will not exceed \$2,950. The administrator’s bid included in the papers is for \$2,950. Which figure is correct? 2. Please provide 60 days, rather than 45, for opt-outs, objections, and workweek disputes. 3. Per counsel’s declaration, Plaintiff was a supervisor. Is he typical of and adequate to represent non-supervisory members of the class? Was he arguably responsible for any of the violations complained of? (Compare <i>Lampe v. Queen of the Valley Medical Center</i> (2018) 19 Cal.App.5th 832, 850 (supervising nurse responsible for setting meal break schedules inadequate to represent class of nurses on meal break claim).)

		4. Counsel’s valuation of the regular rate claim is confusing. Per ¶ 19 of counsel’s declaration, the expert calculated Defendant’s maximum exposure as \$10,835. Counsel testifies he discounted this by 50%, which results in a realistic value of \$14,523.50—more than the expert’s maximum. Moreover, the chart at ¶ 18 gives a realistic value of \$2,708.78 for the regular rate claim, which is about 25% of the expert’s maximum, not 50%. What is the correct valuation? 5. The reimbursement claim is based on cell phone and vehicle use. In Plaintiff’s personal experience, he regularly used his phone to communicate with management and clients, and he used his truck to take Defendant’s packages to UPS. Again, Plaintiff was a supervisor. Did non-supervisory employees regularly communicate with management and clients via cell phone, or use their personal vehicles to take packages to UPS? 6. Does the UCL claim have any independent value, or does it simply extend the limitations period? 7. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice. 8. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice. 9. Because Plaintiff has submitted a declaration in support of his requested enhancement payment, he need not submit one at final approval. 10. At final approval, the administrator is to provide a high, low, and average for individual settlement payments, along with Plaintiff’s individual payout. As to the Notice: 1. The draft notice includes opt-out and objection forms. Please <i>omit</i> the objection form, and please <i>add</i> a workweek dispute form. (That is, the notice should include only opt-out and workweek dispute forms, not an objection form.) In addition, please make corresponding changes to the text of the notice. 2. Does notice need to be given in any languages other than English and Spanish? 3. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 4. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
2	Ortiz vs. West Coast University, Inc., a California corporation 2024-01433416	Plaintiff's Motion for Approval of Class Settlement The motion for approval of PAGA settlement is CONTINUED to July 31, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before July 21, 2026. If a revised settlement agreement and/or proposed notice is submitted, a redline version showing all changes, deletions and additions must be submitted as well. In addition, Plaintiff must provide proof of service of any revised settlement agreement and supplemental papers on